

STATE OF NEW YORK

5319--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 13, 2025

Introduced by M. of A. PHEFFER AMATO -- read once and referred to the Committee on Labor -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the workers' compensation law, in relation to providing family leave to persons recovering from a stillbirth that occurs after the clinical estimate of the twentieth week of gestation

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 15 of section 201 of the workers' compensation
2 law, as added by section 2 of part SS of chapter 54 of the laws of 2016,
3 is amended to read as follows:
4 15. "Family leave" shall mean any leave taken by an employee from
5 work: (a) to participate in providing care, including physical or
6 psychological care, for a family member of the employee made necessary
7 by a serious health condition of the family member; or (b) to bond with
8 the employee's child during the first twelve months after the child's
9 birth, or the first twelve months after the placement of the child for
10 adoption or foster care with the employee; or (c) to recover from a
11 stillbirth that occurs after the clinical estimate of the twentieth week
12 of gestation; or (d) because of any qualifying exigency as interpreted
13 under the family and medical leave act, 29 U.S.C.S § 2612(a)(1)(e) and
14 29 C.F.R. S.825.126(a)(1)-(8), arising out of the fact that the spouse,
15 domestic partner, child, or parent of the employee is on active duty (or
16 has been notified of an impending call or order to active duty) in the
17 armed forces of the United States.
18 § 2. This act shall take effect on the ninetieth day after it shall
19 have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD08434-02-5